Hero FinCorp Limited

CIN: U74899DL1991PLC046774

Registered Office: 34, Community Centre, Basant Lok Vasant Vihar New Delhi-110057

Email: customer.care@herofincorp.com

Phone: 1800-102-4145

Website:www.herofincorp.com

HeroFinCorp.
Finance Made Easy

Key Fact Statement

Date of execution: 05/03/2024

Lender's Name: Hero Fincorp Limited

Applicant Name: KUNAL DAS

Application ID: 60745719

Applicable Loan Type : Personal Loan

Product: Personal Loan

Sr. No	Parameter	Details
(i)	Loan amount (amount disbursed to the borrower) (in Rupees)	INR 250,000
(ii)	Total interest charge during the entire tenure of the loan (in Rupees)	INR 81,020
(iii)	Other up-front charges (break-up of each component to be given below) (in Rupees)	INR 14,288
(a)	Processing fees (in Rupees) inclusive of GST	INR 11,063
(b)	Insurance Premium (in Rupees) (GI)	INR 2,950
(c)	Stamp Duty (in Rupees)	INR 275
(d)	Others (if any) (in Rupees) -Broken Period Interest (if applicable)	INR 0
(iv)	Net disbursed amount ((i)-(iii)) (in Rupees)	INR 235,712
(v)	Total amount to be paid by the borrower (sum of (i), (ii) and (iii)) (in Rupees)	INR 345,308
(vi)	**Effective annualized interest rate (in percentage) (computed on net disbursed amount using IRR approach and reducing balance method)**	**28.17%**
(vii)	Loan term (in months)	30
(viii)	Repayment frequency by the borrower	Monthly
(ix)	Number of instalments of repayment	30
(x)	Amount of each instalment of repayment (in Rupees)	INR 11,034
Details of Contingent Charges		

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(xi)	**Rate of annualized penal charges in case of delayed payments**	**36% p.a on Overdue Amount**
(xii)	**Rate of annualized other penal charges (if any); (details to be provided)**	
(xiii)	**Mandate re-presentation / dishonor charge (in Rupees)**	**INR 350 To be applied once a month on first Mandate/NACH Bounce**
(xiv)	**Pre-closure/foreclosure Charges**	**5% of POS (or) If loan is closed within 6 months from the date of disbursement, then interest on loan amount for 6 months plus foreclosure charges will be applicable.**
Other disclosures		
	Cooling off/look-up period during which borrower shall not be charged any penalty on prepayment of loan	3 days
	Details of LSP acting as recovery agent and authorized to approach the borrower	A mobile application, Prefr, and a website, www.creditvidya.com, under the brand name CreditVidya, both owned and operated InfoCredit Services Private Limited collectively referred to as "Platform" 2nd Floor, Block 2, My Home Hub, Hitech City Rd, Hyderabad, Telangana 500081
	Name, designation, address and phone number of nodal grievance redressal officer designated specifically to deal with FinTech/ digital lending related complaints/ issues (RE)	Ms. Monica Arora, Hero FinCorp Ltd., A-44, Mohan Co-Operative Industrial Estate, Mathura Road, New Delhi – 110044 Email: nodal.officer@herofincorp.com Contact Number: 0124-3633945 (10:00 am to 6:00 pm)
	Name, designation, address and phone number of nodal grievance redressal officer designated specifically to deal with FinTech/ digital lending related complaints/ issues (LSP)	Mr. Moksh Jain, InfoCredit Services Private Limited, 2nd Floor, Block 2, My Home Hub, Hitech City Rd, Hyderabad, Telangana 500081 Email: nodal.officer@prefr.com Contact Number: 040-48521334 (10am to 7pm - Monday to Friday)

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Detailed Repayment Schedule (Illustrative)

Instalment No	Outstanding Principal(in Rupees)	Principal(in Rupees)	Interest(in Rupees)	Instalment(in Rupees)
1	250,000	6244	4790	11034
2	243,756	6364	4670	11034
3	237,392	6485	4549	11034
4	230,907	6610	4424	11034
5	224,297	6736	4298	11034
6	217,561	6865	4169	11034
7	210,696	6997	4037	11034
8	203,699	7131	3903	11034
9	196,568	7268	3766	11034
10	189,300	7407	3627	11034
11	181,893	7549	3485	11034
12	174,344	7693	3341	11034
13	166,651	7841	3193	11034
14	158,810	7991	3043	11034
15	150,819	8144	2890	11034
16	142,675	8300	2734	11034
17	134,375	8459	2575	11034
18	125,916	8621	2413	11034
19	117,295	8786	2248	11034
20	108,509	8955	2079	11034
21	99,554	9126	1908	11034
22	90,428	9301	1733	11034
23	81,127	9479	1555	11034
24	71,648	9661	1373	11034
25	61,987	9846	1188	11034
26	52,141	10035	999	11034
27	42,106	10227	807	11034
28	31,879	10423	611	11034
29	21,456	10622	412	11034
30	10,834	10834	200	11034

Debt recovery T&C

Lender shall be entitled at its discretion to engage/avail of, at the risk and cost of Borrower, services of any personal/third party service provider/agent/agency, for anything required for/in relation to/ pursuant to the Loan, including collections, recovery of Outstanding Dues, enforcement of security, conducting credit in investigation of the Borrower, getting or verifying any information of Borrowers/asset analyzing the bank statement of the Borrower, and any necessary or incidental lawful acts/deeds/matters/things connected.

The Borrower expressly authorizes/ consents to Lender, its various service providers or agents for collection/recovery to contact the Borrower telephonically, through e-mails telephones, messages, SMS WhatsApp or other applications or otherwise even if the names of the Borrower appear in the Do Not Call or Do Not Disturb Register to inform the Borrower about the Outstanding Dues under the Loan Documents (defined below) or any other aspect pertaining to any loan facilities availed or to be availed by the Borrower.

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The Borrower also expressly declares that any modes of communication as detailed above from service provider of Lender and its associates, affiliates and/or group companies will not cause any inconvenience to them and/or their family members.

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Personal Loan Agreement

BORROWER'S NAME: KUNAL DAS

APPLICATION ID: 60745719

LOCATION:

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Language	Declaration	Signature
English	I have understood all the terms and conditions of the agreement which have been explained to me in the language that I understand	
Hindi	मैने अनुबंध के नियम व शर्तें समझ ली हैं, जो मुझे अपनी ज्ञात भाषा में समझाए गए हैं.	
Tamil	ஒப்பந்தத்தின் விதிமுறைகள் மற்றும் நிபந்தனைகள் அனைத்தும் எனது மொழில் விவரிக்கப்பட்டது. அதை நான் புரிந்து கொண்டேன்.	
Malayalam	എനിക്കു മനസ്സിലാകുന്ന ഭാഷയിൽ എനിക്കു വിശദീകരിച്ചു തന്ന കരാറിന്റെ എല്ലാ വ്യവസ്ഥകളും ഉപാധികളും എനിക്കു മനസ്സിലാകുകയുണ്ടായി.	
Telugu	అగ్రిమెంట్‌లోని నియమ నిబంధనలన్నిటిని నేను అర్థం చేసుకున్నాను మరియు వాటిని నాకు అర్థమయ్యే భాషలో వివరించబడ్డాయి.	
Kannada	ನಾನು ಒಪ್ಪಂದದ ಎಲ್ಲಾ ನಿಯಮ ಮತ್ತು ನಿಬಂಧನೆಗಳನ್ನು ತಿಳಿದುಕೊಂಡಿದ್ದು ಅವನ್ನು ನನಗೆ ತಿಳಿಯುವ ಭಾಷೆಯಲ್ಲಿ ನನಗೆ ವಿವರಿಸಲಾಗಿದೆ.	
Marathi	मला करारनाम्याच्या सर्व अटी व शर्ती समजल्या आहेत, ज्या मला कळणाऱ्या भाषेमध्ये समजावून सांगण्यात आल्या आहेत.	
Gujarati	મેં કરારના મને સમજાય તે ભાષામાં સમજાવવામાં આવેલા સર્વ નિયમો અને શરતો સમજી લીધા છે.	
Oriya	ମୁଁ ଏହି ଚାକିରୀନାମାର ସମସ୍ତ ସର୍ତ୍ତ ଓ ନିୟମାବଳି ବୁଝିଛି, ଯାହାକି ମୋତେ ମୁଁ ବୁଝୁଥିବା ଭାଷାରେ ବୁଝାଇ ଦିଆଯାଇଛି।	
Konkani	माका सदमता त्या भाशेन कराराचो सोगळ्या अटी व सर्ती स्पश्ट करोन सांगल्या आनी त्या माका कळ्ळ्या आसा.	
Punjabi	ਮੈਂ ਇਕਰਾਰਨਾਮੇ ਦੇ ਸਾਰੇ ਨਿਯਮਾਂ ਅਤੇ ਸ਼ਰਤਾਂ ਨੂੰ ਸਮਝ ਲਿਆ ਹੈ ਜੋ ਮੇਰੀ ਸਮਝ ਵਿੱਚ ਆਉਣ ਵਾਲੀ ਭਾਸ਼ਾ ਵਿੱਚ ਮੈਨੂੰ ਵਿਆਖਿਆ ਸਹਿਤ ਸਮਝਾ ਦਿੱਤੇ ਗਏ ਹਨ।	
Bengali	আমি চুক্তির সমস্ত নিয়ম ও শর্ত বুঝেছি, যা আমার বোধগম্য ভাষায় আমাকে বিশ্লেষণ করা হয়েছে।	
Assamese	মই এই চুক্তিৰ সকলো নিয়ম আৰু চর্ত বুজি পাইছো আৰু এইবিলাক মই বুজি পোৱা ভাষাত মোক বুজাই দিয়া হৈছে।	
Urdu	میں نے اقرارنامے کے تمام قوائد وشرائط کو سمجھ لیا ہے جو میری سمجھ میں آنے والی زبان میں مجھے سمجھا دیے گئے ہیں۔	

Sign against the appropriate box

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PERSONAL LOAN AGREEMENT

This Personal Loan Agreement **("Agreement")** is made at the place and on the day, month and year as set out in Schedule-I hereto, by and between:

The person(s) named in Schedule-I hereto as the Borrower and Co-Borrower (hereinafter collectively referred to as the **"Borrower"**, which expression shall, unless it be repugnant to the subject or context thereof, include his/her heirs, nominees, legal representatives, executors, administrators, successors and permitted assigns) of the **ONE PART.**

AND

Hero FinCorp Limited, a company incorporated under the provisions of the Companies Act, 1956, a Non Banking Financial Company registered under the provisions of the Reserve Bank of India and having its registered office at 34, Community Centre, Basant Lok, Vasant Vihar, New Delhi-110057, India, (hereinafter referred to as **"Lender"** or **" HFCL"** which expression, unless repugnant to the context, shall deemed to include its successors and assigns) of the **OTHER PART.**

The Borrower and Lender are hereinafter individually referred to as **"Party"** and jointly referred to as the **"Parties."**

In case of there being more than one Borrower (i.e. there being Co-Borrowers), the reference to the term Borrower shall be deemed to be as if it were plural and this document shall be read accordingly as if executed by, and as if liabilities are taken by, each of them jointly and severally. Reference to the masculine gender includes reference to the feminine and neuter genders and vice versa.

The Borrower hereby irrevocably and unconditionally agrees to abide by the following terms and conditions:

1. Pursuant to the application made by the Borrower in the Loan Application Form ("Application"), Lender has sanctioned a loan facility not exceeding the amount mentioned in the Schedule I ("Loan") and the Borrower agrees to borrow the same, subject to the terms and conditions contained in the Application, the Key Facts Statement, the sanction letter, this Agreement and all other documents executed or entered into or to be executed or entered into by the Borrower in relation to the Loan (hereinafter collectively referred to as "Loan Documents").The Borrower shall deliver to the Lender a duly completed and executed Disbursement Request Form as set out in Schedule II to this Agreement. Lender may disburse the Loan or any part thereof ("Disbursement") at its own discretion. Borrower shall use the Loan only for lawful purpose stated in the Application and not for any other purpose including making investment in the capital market or any speculative or illegal or immoral or anti-social purpose. Notwithstanding anything contained herein, Lender may at its sole discretion and without assigning any reason, suspend or cancel or terminate the Loan and recall the entire Outstanding Dues, without prior Intimation to the Borrower.
2. The Outstanding Dues shall collectively mean and include all amounts payable by the Borrower to the Lender pursuant to the Loan Documents including but not limited to the present and future obligations and liabilities of the Borrower to pay repay including without limitation the principal amount of the Loan, Interest, penal charges, default charges, Indemnities, any other charges, dues and monies payable, costs and expenses reimbursable, as outstanding from time to time and all such expenses in respect of or incidental to the borrowing or its recovery or realisation. Borrower shall pay interest on the Loan, the unpaid due Interest, and all other outstanding charges and monies at the rate of Interest specified in Schedule I hereto, on the outstanding daily balance from the date of Disbursement compoundable at monthly rests. Lender in its sole discretion would be entitled to change the said rate of interest (prospectively) including on account of changes made by the Reserve Bank of India ("RBI"), on account of changes in the lending rates, prevalent market practice, money market changes, reserve requirements, provisioning norms, or changes in Applicable law, which would be intimated to the Borrower and binding. Any revision in the rate of interest shall be applicable on the Borrower prospectively from the date of communication. The Borrower acknowledges that such revised interest shall be deemed to form part of Outstanding Dues. Applicable rate of interest may be different for different categories of borrowers and may differ from one loan to other loan. Borrower shall also pay and bear all interest tax, if any, as applicable from time to time. Borrower shall repay the Loan and pay the interest that is due from time to time by way of equated monthly installments (EMIs) as specified in the Schedule-I or as may be specified by Lender, from time to time (time being essence of contract). Borrower has perused, understood and agreed to Lender's method of calculating EMIs as also the appropriation thereof into principal and interest.
3. Payment of all the monies by the Borrower including EMIs shall be made on or before the respective due dates, at such place as Lender may require, without any set-off or counterclaim or withholding of deduction by way of one or more modes and instruments including post-dated cheques ("PDCs ") /Standing instruction ("SI")/National Automated Clearing House ("NACH")/any other mode /instrument as may be acceptable to Lender. If any due date falls on a non-Business Day of Lender, payment shall be made by the Borrower on the immediately preceding business day of Lender. It is hereby clarified that "Business Day" shall mean a day (other than Sunday, bank holiday, public holiday) on which the branch/office of the Lenders open for normal business transactions. In case of cheques/other instruments, the payment shall be deemed to have been made by the Borrower only at the point of time the sum is credited and realized fully in Lender's account irrespective of the date of instrument or time of receipt or presentation of instrument. **In case of any default by Borrower in the repayment of the Outstanding Dues, the Borrower shall without prejudice to Lender's other rights and remedies, pay default/additional/penal charges at the charge mentioned in the Schedule I hereto or as may be prescribed by Lender, over and above the then applicable rate of interest till full payment is made/default is cured**. The Borrower acknowledges that any Sums, Interest, default amounts including but not limited to the Default Charges under this Agreement are reasonable and represent a genuine pre-estimate of the loss in the event of non-payment by the Borrower and/or non-compliance with the terms of the Loan Documents. Further, the Borrower waives any defence available under usury or other Applicable Laws relating to the charging of Interest/Default Charges. The Borrower further agrees not withdraw or cancel the NACH/Security NACH mandate or issue stop payment instructions with respect to the said mandate till the subsistence of any dues under the said Facility. The Borrower further agrees and undertakes that any such action done/purported to be done shall not only be a contractual violation but shall also be construed as an act of criminal breach of trust and cheating by the Borrower for which HFCL shall be entitled to initiate appropriate criminal proceedings against the Borrower/s and/or any other relevant Person.
4. Borrower shall pay Lender the charges, fees, commissions, etc, as specified in the Schedule-I/Application or as specified by Lender, within such time or upon occurrence of such events as specified and if not specified then forthwith upon demand by Lender. All other present and future costs and expenses, taxes (as applicable), any related levy, stamp duty, in all jurisdictions in relation to the this /other documents/any transaction pursuant thereto, irrespective of who the beneficiary is, shall be borne and payable solely by the

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Borrower, including for creation, enforcement, preservation of security, recovery, initiating/defending/pursuing any legal proceedings /actions by Lender. In case of any such sums if paid or incurred by Lender, the Borrower shall be liable to reimburse the same forthwith to Lender in full.

5. Any Payment made by/on behalf/for the Borrower or any realisations in relation to the Loan, security, shall be appropriated towards Outstanding Dues in the following order: (a) towards costs and expenses incurred by Lender; (b) towards any charges, commissions, fees, taxes, levies (wherever applicable); (c) towards additional/default charges; (d) towards interest; and (e) towards principal amount(s). Any statement of account furnished by Lender shall be accepted and be binding on Borrower and shall be conclusive proof of correctness of amounts mentioned therein except for any manifest error therein.
6. Notwithstanding anything stated in any document, the continuation of the Loan shall be at sole and absolute discretion of Lender and Lender may at any time in its sole discretion and without assigning any reason call upon the Borrower to pay Outstanding Dues and upon such demand, Borrower shall pay the whole of Outstanding Dues to Lender without any delay or demur.
7. Borrower's liability shall not be affected, terminated or prejudiced by death, insolvency, bankruptcy of Borrower, but shall continue in full force, effect and shall be binding on Borrower's successors, heirs etc.
8. Lender at its sole discretion shall have the right to (i) revise or reschedule the repayment terms; or (ii) store financial, identity and other data/information of the Borrower; or (iii) inspect books of accounts and other records maintained by the Borrower; or (iv) recall the entire Outstanding Dues of the Borrower at any time.
9. The Borrower shall be entitled to prepay the Loan: (i) only if Lender permits the same upon at least 15 (fifteen) days' written notice from Borrower communicating intention to prepay the said Loan and (ii) subject to such conditions as Lender may prescribe including payment of the prepayment charges as mentioned in the Schedule I hereto or as specified from time to time by Lender. There shall be no prepayment or foreclosure charges on floating rate term loans sanctioned for purposes other than business to an individual borrower with or without co-borrower.
10. Lender may at its own discretion and upon Borrower's request, also finance the Borrower for the insurance premium of insurance policy taken by Borrower as per Borrower's own wish from any insurance company of Borrower's choice, which sum shall be added to the principal amount under the Loan and all the terms and conditions shall be additionally applicable thereto. All expenses, charges, fees, taxes etc as applicable on any such insurance shall be incurred and paid by Borrower, however, in case paid by Lender on Borrower's behalf, Borrower shall reimburse the same to Lender within 24 (twenty four) hours of Lender's demand. The Borrower shall instruct the insurance company to add Lender as loss payee in any such insurance policy. Without prejudice to the foregoing, if the Borrower opts to avail of an insurance coverage for the Loan on the Platform (defined below) where it is availing of the Loan, the Borrower agrees that the corresponding insurance premium shall be deducted by the Lender from the total Loan amount to be disbursed prior to the disbursement, and the Lender may then directly remit such amounts to the relevant insurer. The amounts received by the Borrower shall be the Loan amount as reduced by such insurance premium, and any other upfront charges as mentioned in Schedule I.
11. Disbursement under the Loan shall be subject to Borrower having been provided the following documents as per Lender's satisfaction: (a) duly executed counterpart of this Agreement and such other documents as per the sanction letter and/or as required by Lender including without limitation, the Disbursement Request Form (as set out in Schedule II); (b) latest financial statements, bank statements, ITR, KYC documents including proof of identity, proof of address, date of birth proof of Borrower, as requested by Lender ; (c) PDC, NACH mandate forms, security post dated cheques (SPDC), as may be required by the Lender.
12. Each of the Borrowers represent(s) and warrant(s) that (which shall be deemed to have been repeated to Lender on the date of the Disbursement and on each date thereafter): (a) Borrower is a citizen of India and a major (in terms of age) and is of sound mind and is competent to contract and enter into and perform his/her obligations contemplated under this Agreement/Other Loan Documents in respect of the Loan; (b) There is no impediment or restriction, whether under law, judgement order, award contract or otherwise, for any of the Borrower entering into and/or performing any of the transactions contemplated by this Agreement/other Loan Documents in respect of the Loan and all approvals and consents, wherever necessary have been duly obtained and are and will continue to be in full force; (c) The execution hereof constitutes legal, valid and binding obligations of Borrower; (d) There is no event of default existing or continuing; (e) All declarations made by Borrower are true and complete and no information has been suppressed /withheld; (f) There are no arrears on taxes or other statutory dues and has completed all necessary filings; (g) The "Know Your Customer" (" KYC") requirements of the lender have been and shall be fulfilled and all other terms and conditions as maybe prescribed by RBI or by the Lender from time to time have been and shall be complied with; (h) No suit, litigation, proceeding, investigation, corporate action, creditor's process etc. by any government authority or any court or tribunal or any other person is ongoing or pending or threatened against the Borrower or in respect of its assets.The Borrower hereby provide consent to HFCL to carry out the KYC and other requisite checks by such processes as may be permissible under Applicable Law including authentication/verification of documents or details submitted for KYC purpose, accessing and procuring data from databases maintained by statutory or other government authority. The Borrower expressly authorize/consent to HFCL, its various service providers or agents including for marketing, collection and recovery agents to contact the Borrower telephonically, through e-mails, telephones, messages, SMS, whatsapp or other applications or otherwise even if the names of the Borrower appear in the 'Do Not Call' or 'Do Not Disturb' register to inform the Borrower about the marketing schemes, various financial and/or investment products and/or offerings of other services, outstanding dues under the Facility Documents or any other aspect pertaining to any Facilities availed or to be availed by the Borrower. The Borrower also expressly declare that such e-mails, telephonic calls, messages, SMS, whatsapp messages, etc. from the tele-callers, agents and/or service provider of HFCL and its associates, affiliates and/or group companies will not cause any inconvenience to them and/or their family members. The Borrower agrees to the use of emails, messages, SMS, whatsapp and/or other applications for communication or sharing of information or document, agree to abide by the and conditions of such applications and agree to the associated with such applications or sharing of information through them.
13. Borrower covenants and agrees that, except with prior specific and express written consent of Lender, Borrower shall not (a) create, assume or incur any indebtedness to any person or lend/advance any amount to any person or undertake any guarantee/security obligation; (b) go abroad for employment/business or long term stay; (c) change/cease/retire from/terminate/resign from present employment/profession/business disclosed in the Application. The Borrower undertakes that in case Borrower changes its name, address, employment, place of employment, main bank account, nationality, citizenship etc, Borrower shall intimate the same to Lender in writing immediately.
14. If the PDC/SPDC delivered to Lender by the Borrower pursuant to this Loan or this Agreement, is lost, destroyed or misplaced while in the custody of Lender becomes non encashable due to death, insolvency, lunacy, expiry of validity, termination of authority, then in any of such events, the Borrower or its heirs shall within three (3) days of intimation of the same, from Lender or immediately on the

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said PDC/SPDC being non encashable due to the reasons mentioned herein or for any other reason, deliver to Lender such numbers of PDC/SPDC as may be required by the Lender (in place of those that have been lost, destroyed, misplaced or become non encashable).

15. The Borrower shall sign and execute all documents, applications and provide requisite information and documents as required for affecting the transfers through NACH/SI/Direct Debit by Lender with which the Borrower's account is maintained. The NACH/Direct Debit Mandate Form delivered to Lender by Borrower pursuant this Loan, shall not be changed, modified, countermanded without the prior written permission of Lender.

16. The Borrower undertakes and agrees to Indemnify, keep indemnified and hold harmless Lender, its affiliates, representatives, agents, officers, directors, employees and assigns (each an "Indemnified Party") from and against any and all losses, claims, actions, proceedings, demands, damages, costs and expenses incurred including attorneys' and accountants' fees (collectively "Losses") to which any Indemnified Party may become subject to, insofar as such Losses arise out of, in any way relate to, or result from: (i) any information provided or approved by the Borrower being misleading or deceptive in any respect;(ii) failure by the Borrower to comply with/fulfil any obligation, undertaking, covenant or condition contained in this Agreement or any other Loan Documents; (iii) Breach by the Borrower of any representation and warranty; (iv) any act or omission that constitutes a violation of Applicable Law by the Borrower; (v) occurrence of any Event of Default or any cause thereof; (vi) any default made by the Borrower in the repayment of the Outstanding Dues or in the performance of its obligations in accordance with this Agreement or any other Loan Documents; (vii) any delay in payment of any sums payable or reimbursable by the Borrower to Lender under or pursuant to this Agreement. Further, Borrower acknowledge the inherent risks involved in sending the instructions/communications/documents to or by Lender via facsimile, emails or any other electronic mode and hereby agree and confirm that all risks shall be fully borne by the Borrower and the Borrower hereby assumes full responsibility for the same, and undertakes to indemnify Lender and keep Lender indemnified and harmless at all times from and against any and all Losses including any claims and demands by any third party or any other actions (including legal fees on a full indemnity basis) and howsoever arising which may be brought or preferred against Lender or that Lender may or may have to suffer, Incur or sustain by reason or on account of Lender having so acted whether wrongly or mistakenly or not, or of Lender failing to act wholly or in part in accordance with the instructions so received which could be a result of any miscommunication, or technological error beyond the control of Lender considering the mode in which the same was conveyed.

17. The following non exhaustive events shall constitute events of default (each an "Event of Default"), and upon the occurrence of any of them the entire Outstanding Dues shall become Immediately due and payable by the Borrower and further enable Lender inter alia to recall the entire Outstanding Dues and/or enforce any security and transfer/sell the same and/or take, initiate and pursue any actions/proceedings as deemed necessary by Lender for recovery of the Outstanding Dues: (a) Failure on Borrower's part to perform any of the obligations or terms or conditions or covenants applicable in relation to the Loan under this Agreement/other Loan Documents; (b) non payment in full of any part of the Outstanding Dues when due or when demanded by Lender; (c) any misrepresentation or misstatement by the Borrower or any commencement of material Information or document or event by the Borrower; or (d) occurrence of any circumstance or event which adversely affects Borrower's ability/capacity to pay/repay the Outstanding Dues or any part thereof or perform any of the obligations; (e) if any attachment distress, execution or other process against the Borrower/its assets; or (f) In the event of death, unsound mind, Insolvency, failure in business, commission of an act of bankruptcy of the Borrower, or change or termination of employment/profession/business for any reason whatsoever; or (g) Submission of any forged document by the Borrower; or (h) for any regulatory or other reasons, Lender is unable or unwilling to continue the Loan; or (i) any event or circumstance arises which has or, in the reasonable opinion of Lender, may cause material adverse change; or (j) if the Borrower is convicted under any applicable law; or (k) any instruction is given by the Borrower for stop payment with respect to any of the repayment cheques and/or payment through NACH/Direct Debit for any reason whatsoever; or (l) any proceeding or imminent threat of proceeding initiated against the Borrower, by any party under laws of insolvency (m) if the Borrower opts to discontinue his/her profession or close down his/their business/trade for any reason whatsoever, (n) if the Loan or any part thereof is utilized for any purpose other than the purpose for which it is sanctioned by Lender; (o) If the Borrower fails to give NACH/I/PDC's or submit additional documents to Lender as provided herein; (p) any other event which in the sole opinion of Lender would endanger the repayment of the Loan;(q) if the Borrower acts fraudulently or dishonestly.

18. Without prejudice to the rights available to Lender under applicable law, on the occurrence of an event of Default, Lender shall be entitled to exercise any of the following rights (whether simultaneously or otherwise), at its sole discretion:(i) declare Outstanding Dues immediately and payable; (ii) declare all undrawn amount of the Loan as cancelled forthwith; (iii) stipulate such other conditions of terms in relation to this Agreement or Loan Documents, as Lender considers necessary; (iv) initiate appropriate civil or criminal proceedings against the Borrower, including but not limited to under Section 138 of the negotiable Instrument Act, 1881 (v) enforce Lender's rights under this Agreement/any other Loan Document/applicable law.

19. For all or any of the aforesaid purposes, on the occurrence of an Event of Default, the Borrower hereby irrevocably appoints Lender as its attorney or attorneys, and in the name and on behalf of the Borrower, to execute and do all acts, deeds and things which the Borrower is authorized to execute and do under the covenants and provisions herein contained and generally to use the name of the Borrower in the exercise of all or any of the powers under this Agreement and the Loan Documents or by law conferred upon Lender and also to execute on behalf of the Borrower at the cost of the Borrower, the powers hereunder or by law conferred on Lender and also to execute on behalf of the Borrower at the cost of the Borrower, such documents and deeds as may be necessary to give effect to the provisions referred to hereinabove. The Borrower covenants with Lender to ratify and confirm all acts or things made, done or executed by any attorney as contemplated in this clause.

20. Lender shall at any time, without any consent of or notice to the Borrower be entitled to securitise, sell, assign, or transfer all or any part of Lender's rights and obligations under the Loan, this Agreement or any other Loan Document, to any persons(s) and in such manner and on such terms as Lender may decide. The Borrower shall not be entitled to directly or indirectly assign or in any manner transfer, whether in whole or part, any rights, the benefit or obligation under the Loan, this Agreement/other Loan Document without prior written consent of Lender.

21. Lender shall be entitled at its discretion to engage/avail of, at the risk and cost of Borrower, services of any personal/third party service provider/agent/agency, for anything required for/in relation to/ pursuant to the Loan, including collections, recovery of Outstanding Dues, enforcement of security, conducting credit in investigation of the Borrower, getting or verifying any information of Borrowers/asset analyzing the bank statement of the Borrower, and any necessary or incidental lawful acts/deeds/matters/things connected.

22. Lender shall, without notice to or without any consent of the Borrower, be absolutely entitled and have full and unqualified right power and authority to make disclosure of any information relating to Borrower (including personal sensitive data or information and any information that requires consent under the Information Technology Act, 2008 and/or any other statute), details in relation to this

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Delhi

Agreement, Loan Documents, Loan, defaults, security, obligations of Borrower, to the Transunion CIBIL Limited ("CIBIL") and/or any other government/regulatory/statutory of private agency/entity, credit bureau, insurers, RBI, Lender's other branches/subsidiaries /affiliates/rating agencies, service providers other banks/institutions, and third parties, any assignees/potential assignees or transfers. In this connection the Borrower waives the privilege of privacy and privity of contract. Lender shall have the right, without notice to or without any consent of the Borrower, to approach, make enquiries, obtain information, from any person including other banks/finance entities/credit bureaus, Borrower's employer/family members, any other person related to the Borrower to obtain any Information for assessing track record, credit risk, or for establishing contact with the Borrower or for the purpose of recovery of Outstanding Dues from the Borrower. CIBIL and/or any other agency so authorized may use and/or process the aforesaid information and data disclosed by the Lender in any manner as deemed fit by them. CIBIL and/or any other agency so authorized may furnish for consideration, the processed information and data or products thereof prepared by them, to Lender/Financial institutions and other credit grantors other registered users, as may be specified by RBI in this behalf. RBI and/or CIBIL shall have an unqualified right to disclose/publish the details of default and name of the Borrower, its directors, partners, as the case may be, as defaulters, in such manner and through such medium as RBI/CIBIL in their absolute discretion may think fit.

23. Lender may set off any matured Outstanding Dues due from the Borrower under this Agreement (to the extent beneficially owned by Lender) against any matured obligation owed by Lender to that Borrower.

24. All amounts payable by Borrower shall be paid on or before the relevant due date(s) as mentioned in Schedule I for such payment without any delay or demur and without any deduction whatsoever by way of Set off or counterclaim or otherwise of any amount due or alleged to be due or outstanding from Lender or any other Person and notwithstanding any legal limitation, disability or incapacity of the Borrower.

25. Any default by the Borrower under any agreement, arrangement, guarantee, and /or under any of its indebtedness (whether actual or contingent or whether primary or collateral, or whether joint and/or several), with Lender or its holdings/subsidiaries/affiliates/group companies, shall constitute an Event of Default under the Loan and vise-versa.

26. The Borrower hereby provide consent to Lender to carry out the KYC and other requisite checks by such processes as may be permissible under Applicable Law including authentication/verification of documents or details submitted for KYC purpose, accessing and procuring data from databases maintained by statutory or other government authority. The Borrower expressly authorize/ consent to Lender, its various service providers or agents, including for marketing, collection and recovery agents to contact the Borrower telephonically, through e-mails telephones, messages, SMS Whatsapp or other applications or otherwise even if the names of the Borrower appear in the Do Not Call or Do Not Disturb Register to inform the Borrower about the marketing schemes, various financial and/or investment products and/or offerings of other services, Outstanding Dues under the Loan Documents or any other aspect pertaining to any loan facilities availed or to be availed by the Borrower. The Borrower also expressly declare that such e-mails, telephonic calls, messages, SMS, Whatsapp messages etc. from the tele-callers, agents and/or service provider of Lender and its associates, affiliates and/or group companies will not cause any inconvenience to them and/or their family members. The Borrower agree to the use of emails, messages, SMS, Whatsapp and/or other applications for Communication or sharing of information or document, agree to abide by the and conditions of such applications and agree to the associated with such applications or sharing of information through them.

27. This Agreement, Loan Documents, all obligations arising out of or in connection with them, shall be governed by and shall be construed in accordance with the laws of India. Subject to clause 28 below, the Parties hereto agree that all disputes arising out of and/or relating to the Loan, this Agreement or any other Loan Document shall be subject to the exclusive jurisdiction of the courts at New Delhi only. Notwithstanding the aforesaid, the Borrower acknowledges and agrees that Lender may, however, in its absolute discretion commence any legal action or proceedings arising out of this Agreement or any other Loan Document against the Borrower in a court tribunal or any other appropriate forum situated in any part of India.

28. All disputes, claims, controversy or difference or questions between Parties arising out of or relating to the Loan, this Agreement, other Loan Documents shall be referred to arbitration by a sole arbitrator to be appointed by Lender only. The arbitration proceedings shall be conducted in accordance with the Arbitration and Conciliation Act, 1996, including the statutory amendments. The venue, place and seat of arbitration shall be New Delhi and the language of the arbitration shall be English. The award including interim award (s) for the arbitral tribunal shall be final, conclusive and binding on all the parties concerned. The arbitral tribunal may, from time to time, lay down the procedure to be followed in conducting the arbitration proceedings and shall conduct the arbitration proceedings in such manner as it considers appropriate.

29. The Borrower covenant and undertake that till the obligations under the Loan are outstanding, it shall not withdraw or cancel the NACH/Security NACH mandate or issue stop payment instructions with respect to the said mandate till the subsistence of any dues under the said Facility. The Borrower further agrees and undertakes that any such action done/ purported to be done shall not only be a contractual violation but shall also be construed as an act of criminal breach of trust and cheating by the Borrower for which HFCL shall be entitled to initiate appropriate criminal proceedings against the Borrower/s and/or any other relevant Person.

30. Interest, taxes, other fees, Stamp duties, processing fees, upfront fees, insurance premium, NOC fees, prepayment charges, insurance charges, enforcement expenses, assignment cost, legal expenses and other charges, as may be applicable from time to time on the Loan shall be borne solely by the Borrower. Such amounts shall from part of the Outstanding Dues. Lender may at any time and from time to time without prior notice to the Borrower, add to, withdraw or otherwise vary the fees and charges payable in connection with the loan. Any changes in the charges shall be effected only prospectively.

31. All payments to be made by the Borrower to the Lender under the Loan Documents shall be made free and clear of taxes and without any tax deduction, unless a tax deduction required under the applicable Law.

32. Lender reserves the right to alter, amend or revise any of these terms and conditions and may notify the Borrower of any changes to terms and conditions in any manner it consider appropriate.

33. The Parties agree that damages may not be an adequate remedy and Lender shall be entitled to an injunction, restraining order, right for recovery, specific performance or such other equitable relief to restrain the Borrower from committing any violations or enforce the performance of the covenants, Warranties or obligations contained in this Agreement. The Parties agree that any delay or omission by Lender in exercising any of its rights, powers or remedies under this Agreement and other documents pursuant hereto shall not impair the right, power or remedy or be construed as its waiver or acquiescence by Lender.

34. Each of the provisions of this Agreement are intended to be and shall be construed as independent and severable of each other. Invalidity, illegality or unenforceability of any provision (in whole or part) of the terms and conditions of this Agreement in any jurisdiction shall not affect such provision in any other jurisdiction or invalidate or affect the remaining provision (including in Case of

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partial invalidity, the valid part of the affected provision) of this Agreement. Lender's remedies under this Agreement or applicable law including termination of this Agreement shall be several and cumulative and not in the alternative.

35. Any notice, demand, request or other communication to be given or made by a Party to the other shall be in writing unless otherwise stated and shall be deemed to duly given and served if send by personal delivery, courier, speed post, registered post, email, facsimile at the address as mentioned in Schedule I. Such notice and service shall be deemed to take effect on the third business day following the date of posting thereof in case of courier, speed post, registered post; at the time of delivery, if given by personal delivery; upon receipt of transmission report if given by facsimile; upon sending the email if given by email. The Borrower undertakes to keep Lender informed at all the times in writing of any changes in the residential/official address, email Id, phone number, mobile number, fax.
36. As regards the Borrower, this Agreement shall be in full force and effect and shall not be terminated, in any situation except with the written consent of Lender to the effect that the entire Outstanding Dues under this Agreement have been paid in full by the Borrower.
37. In the event any changes are required to be made in any of the Loan Documents based on guidelines/ directives issued by the RBI to non-banking financial companies from time to time, such changes shall be deemed to be incorporated in the Loan Documents as if the same were part of the documents since inception and thereafter such amended terms and conditions will thereupon apply to and be binding on the Borrower. Without prejudice to the aforesaid, Lender may in its sole discretion as the Borrower to co-operate with the Lender to make these changes in the Loan Documents and the Borrower shall be bound by the same.
38. Notwithstanding any suspension or termination of the Loan, all rights and remedies of the Lender as per the Loan Documents shall continue to survive until the receipt by the Lender of the Outstanding Dues in full to its satisfaction.
39. This Agreement, Sanction Letter, Application and other Loan Documents have been exposed to the Borrower in their respective vernacular language known to the Borrower and the Borrower has read and understood the same and thereafter Schedule(s) to this Agreement were duly filled in and understood by the Borrower and the signatures of the Borrower were taken on this Agreement.
40. The Application, Sanction Letter, Schedule hereto and any amendments thereof shall be deemed to be an integral part of this Agreement as if the provisions thereof were set out herein in extension.
41. The terms of the Sanction Letter are in addition to this Agreement. If there is any inconsistency between the Sanction letter and this Agreement, then the latter shall prevail.
42. The Borrower further agrees that this Agreement may be executed physically or electronically by Parties, as deemed appropriate to Lender.
43. This Agreement may to executed in any number of counterparts by either handwritten or electronic signature, each of which when executed shall constitute a original, but all the counterparts shall together constitute the one agreement, and each of which counterparts may be delivered by emailing the signed scanned document or electronically signed portable document format (pdf) version of this Agreement (as applicable). The Borrower agrees to the execution of this Agreement in this manner, and the Borrower acknowledges that execution in this manner creates a binding contract between the Parties. Further, upon the request of the Borrower, this Agreement may be executed in a vernacular language; however, the English version of this Agreement shall prevail. In addition, the Obligors agree that the details required for the purposes of this Agreement , which are unavailable or note of this Agreement, shall be deemed incorporated and considered as a part of this Agreement, as and when such details and information are made available. The Borrower has read, understood, agrees and accept all the above terms and conditions of this Agreement, from Clause no 1 to 43 on page nos. _____to_____. The Agreement has been explained to the Borrower in vernacular language and Borrower has understood the entire meaning and also the Borrower has been served a copy after execution.

IN WITNESS WHEREOF, the Parties, have duly executed this Agreement, as of the day, month and year first aforesaid

SIGNED AND DELIVERED within named Borrower **60745719_2409:4060:281:e409::79d:30a4_KUNAL DAS_05-03-2024 07:38:30** **Name:** KUNAL DAS	**SIGNED AND DELIVERED within named Co-Borrower** **----------** **Name:**	**SIGNED AND DELIVERED by Hero FinCorp Limited** **----------** **Name:** **Designation:**

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CHEQUE SUBMISSION FORM

Important Instructions:

- Cheque Should be crossed as "Account Payee Only"
- The Cheque should be drawn in favour of **"Hero FinCorp Limited"** only
- HFCL does not take responsibility for cheques left blank or drawn in favour of any name other than "HERO FINCORP LIMITED"
- Please ensure that amount in words and figure are the same without any correction/alteration
- Installment/EMI cheques to be dated as per your Repayment Schedule

CUSTOMER DETAILS

Name of the Borrower : KUNAL DAS

Application No : 60745719

LAN No :

CHEQUE DETAILS

Sr. No.	Cheque Numbers Ranging		Date of Cheque Ranging		No. of Cheques	A/C Type (Savings /Current)	Name of Bank & Branch	Account No.	Purpose(EMI/PEMI /SPDC)
	From	To	From	To					

I/We declare that I/We have not given any cheques other than the ones mentioned above and all cheques are drawn in favour of "Hero FinCorp Limited",

Thanking you

Yours faithfully

Name of the Borrower : KUNAL DAS

Signature of Borrower : 60745719_2409:4060:281:e409::79d:30a4_KUNAL DAS_05-03-2024 07:38:30

Name of the Co-Borrower _____

Signature of Co-Borrower _____

Account Holder Name : KUNAL DAS

Account Holder Signature _____

Place:
Date:

Received By:

Sales representative's name & signature with date:

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SCHEDULE I

[This Schedule forms an integral part of the Personal Loan Agreement]

Sr. No	Particulars	Details
1	Date & Place of Execution	05/03/2024 & NEW DELHI
2	Address of Lender	New Delhi
3	**Borrower's Details**	
a)	Name:	KUNAL DAS
b)	Father / Husband's Name:	
c)	Mother's Name:	KRISHNA DAS
d)	Address:	
e)	Occupation:	Salaried
f)	Email:	isearch.xsolve@gmail.com
g)	Phone Number:	9830739230
h)	PAN:	AIIPD6525H
4	**Co-Borrower's Details**	
a)	Name:	
b)	Father / Husband's Name:	
c)	Mother's Name:	
d)	Address:	
e)	Occupation:	
f)	Email:	
g)	Phone Number:	
h)	PAN:	
5	**Loan Details**	
a)	Loan Application Form Date & No.:	05/03/2024
b)	Loan Account Number:	
c)	Sanction Letter Date with Reference No.:	05/03/2024
d)	Sanction Loan Amount:	INR 250,000
e)	Loan Type:	Personal Loan
f)	Purpose of Loan:	Other emergency
g)	Tenure:	30 months
h)	Moratorium Period(if any):	
6	**Interest Details**	
a)	Rate of Interest:	22.99%
b)	Interest Type:	Reducing Balance
c)	Annual Percentage Rate:	28.17%
d)	Lender Prime Lending Rate:	
7	**Repayment Details**	
a)	Repayment Schedule:	Repayment Schedule will be shared separately after Loan Disbursement

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b)	EMI Amount:	INR 11,034
c)	Mode of Repayment:	EMI
d)	Total No. of EMIs:	30
e)	Date of Commencement of First EMI:	05/04/2024
f)	Due date of each of the EMI:	5th of every month
8	**Other Details**	
a)	Processing fees (in Rupees) inclusive of GST:	INR 11,063
b)	**Pre-closure/foreclosure Charges:**	**5% of POS (or) If loan is closed within 6 months from the date of disbursement, then interest on loan amount for 6 months plus foreclosure charges will be applicable.**
c)	Default Charges:	
d)	**Rate of annualized penal charges in case of delayed payments:**	**36% p.a on Overdue Amount**
e)	**Mandate re-presentation / dishonor charge (in Rupees):**	**INR 350 To be applied once a month on first Mandate/NACH Bounce**
f)	Cheque Swap Charges:	
g)	Advance EMI:	
h)	Documentation Charges:	INR 275
i)	Legal & Incidental Charges:	
j)	Insurance Premium (GI):	INR 2,950
k)	Other Charges:	
GST and all other applicable taxes statutory levies, if any will be charged additionally		

SMA/NPA Classification

Classification & Upgradation of Special mention accounts (SMA) / Non-Performing Asset (NPA): If Principal or interest or any other amount remain overdue (wholly or partly) then borrower loan account shall reflect the asset classification (SMA/NPA) status of an account at the day-end of that calendar date. Loan accounts classified as NPAs may be upgraded as "Standard" asset only if entire arrears of interest and principal are paid by the borrower.	**Basis of Classification:** SMA Sub-Categories : Principal or Interest wholly or partly overdue SMA : 0 Upto 30 days SMA-1 : More than 30 days and upto 60 days SMA-2 : More than 60 days and upto 90 days NPA : More than 90 days Illustration: If due date of a loan account is March 31, 2023, and full dues are not received before the lending institution runs the day-end process for this date, the date of overdue shall be Marxch 31, 2023. If it continues to remain overdue, then this account shall get tagged as SMA-1 upon running day-end process on April 30, 2023 i. e. upon completion of 30 days of being continuously overdue. Accordingly, the date of SMA-1 classification for that account shall be April 30, 2023. Similarly, if the account continues to remain overdue, it shall get tagged as SMA-2 upon running day-end process on May 30, 2023 and if continues to remain overdue further, it shall get classified as NPA upon running day-end process on June 29, 2023

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Signature of Borrower

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Signature of Co-Borrower

SCHEDULE II

Disbursement Request Form

To,
Hero FinCorp Limited 34,
Community Center, Basant
Lok,Vasant Vihar, New
Delhi-110057

Date: 05/03/2024

Dear Sir,

I/We have been sanctioned a personal Loan of 250,000 -(Rupees only) by Hero FinCorp Limited("Lender").I/We wish to take the disbursement of my loan and request you to disburse the following amount by a Demand Draft/Cheque/Electronic transfer to the following.

Sr.No	Account Holder Name	Account Number	Bank Name & Branch	IFSC Code	Amount to be disbursed*
1	KUNAL DAS	911010010326716	AXIS BANK	UTIB0000025	INR 235,712

* The final disbursement amount may change on the basis of broken period interest accrued on the disbursal date.

I/We hereby confirm/declare that:

- INR 235,712 of the aggregate Loan amount has already been disbursed to us.
- All the representations and Warranties contained in the personal Loan Agreement are true and correct on the date hereof as if each was made with respect to the facts existing on such date;
- No Event of Default or potential Event of Default has occurred or is continuing and further, no such event has happened which would result in a material adverse effect;
- All the necessary certificates and documentation required by Lender is attached herewith or has already been made available to Lender.
- The Proceeds of the proposed disbursement shall be used for the purposes as stated in the Personal Loan Agreement;
- This disbursement shall be subject to credit limit fixed by Lender from time to time and we shall not protest the decision of Lender in this regard;
- We agree and undertake to repay the disbursed amount of the loan facility as per the repayment schedule and in accordance with the Personal Loan Agreement and further agree and acknowledge that Lender shall be entitled to demand immediate repayment of the disbursed amount if any installment of interest/principal installment remain unpaid on the due date for payment thereof;
- This Disbursement Request Form is irrevocable.

	Name	Signature
Borrower	KUNAL DAS	60745719_2409:4060:281:e409::79d:30a4_KUNAL DAS_05-03-2024 07:38:30
Co-Borrower	Name	

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Tue, Mar 5, 2024 15:36:11 IST
Delhi

PREFR PRIVACY POLICY

This privacy policy (**"Policy"**) has been drafted in accordance with the Information Technology Act, 2000, the Information Technology (Reasonable security practices and procedures and sensitive personal data or information) Rules, 2011, Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 to the extent applicable, and applicable RBI guidelines and regulations.

Infocredit Services Private Limited (hereinafter "Prefr", "CreditVidya", "Us", "Our", "We", which shall mean and include its affiliates, successors and assigns) owns and operates mobile application under the brand name of Prefr and website, www.creditvidya.com, under the brand name CreditVidya (collectively referred to as **"Platform"**).

THIS POLICY DESCRIBES OUR POLICIES AND PROCEDURES FOR COLLECTION, USE, STORAGE, PROCESSING, DISCLOSURE AND PROTECTION OF ANY INFORMATION, INCLUDING, BUT NOT LIMITED TO, PERSONAL INFORMATION PROVIDED BY YOU AS A USER (HEREINAFTER REFERRED TO AS "YOU", "YOUR" or "USER") WHILE USING THE PLATFORM AND YOUR PRIVACY RIGHTS. USER SHALL MEAN ANY PERSON/ PERSONS, WHO VISITS, USES, DEALS WITH AND/ OR TRANSACTS THROUGH THE PLATFORM.

THIS POLICY CONSTITUTES A LEGAL AGREEMENT BETWEEN YOU, AS THE USER OF THE PLATFORM, AND PREFR, AS THE OWNER OF THE PLATFORM.

YOU MUST BE A NATURAL PERSON, CITIZEN OF INDIA WHO IS ATLEAST 18 YEARS OF AGE AND ELIGIBLE TO ENTER INTO A BINDING CONTRACT UNDER THE INDIAN CONTRACT ACT, 1872.

BY VISITING/ ACCESSING THE PLATFORM AND VOLUNTARILY PROVIDING US WITH INFORMATION, YOU ARE CONSENTING TO OUR USE OF YOUR INFORMATION IN ACCORDANCE WITH THIS POLICY.

THIS POLICY SUPERSEDES ANY PREVIOUS COMMUNICATION ON THIS SUBJECT MATTER AND DOES NOT APPLY TO THIRD-PARTY WEBSITES AND APPLICATIONS THAT ARE CONNECTED VIA LINKS TO THE PLATFORM. YOU ACCESS THIRD-PARTY APPLICATIONS AND WEBSITES AT YOUR OWN RISK AND WE ARE NOT LIABLE OR RESPONSIBLE TO YOU FOR ANY THIRD-PARTY APPLICATIONS AND WEBSITES.

IF YOU DO NOT AGREE WITH THE TERMS AND CONDITIONS OF THIS POLICY, PLEASE DO NOT PROCEED FURTHER TO USE/ ACCESS THIS PLATFORM.

THIS POLICY IS A PART OF THE TERMS OF USE LOCATED HERE. YOUR USE OF THE PLATFORM WILL BE GOVERNED BY THIS POLICY TOGETHER WITH ALL POLICIES, NOTICES, GUIDELINES, DISCLAIMERS THAT ARE PUBLISHED ON THE PLATFORM AND/OR SHARED WITH YOU FROM TIME TO TIME AND SUCH OTHER TERMS AS MAY BE APPLICABLE TO YOU AS A USER OF THE PLATFORM.WE MAY UPDATE THIS POLICY FROM TIME TO TIME. WE SHALL INFORM YOU AT LEAST ONCE IN A YEAR OF OUR PRIVACY POLICY FOR YOU TO TAKE NOTE OF ANY CHANGES IN THIS PRIVACY POLICY IF YOU ARE A REGULAR USER OF OUR PLATFORM. HOWEVER, WE URGE YOU TO PERIODICALLY REVIEW THE POLICY FOR THE LATEST INFORMATION ON OUR PRIVACY PRACTICES. CHANGES AND MODIFICATIONS TO THIS POLICY WILL TAKE EFFECT IMMEDIATELY UPON POSTING ON THE PLATFORM. ANY CONTINUED USE OF THE SERVICES SHALL SIGNIFY YOUR ACCEPTANCE OF SUCH UPDATED POLICY.

1. Services

We collect information to provide services (**"Services"**) to You in the nature of:

A. Facilitating the provision of loans:

- We act as a technology and service provider for facilitating the provision of loans to You through Our financial partners such as banks and NBFCs ("Lending Partners") and provide ancillary services to Our Lending Partners in relation to the loans they provide to You, including providing You an option to avail insurance, via a group insurance policy availed by us from an insurer We choose ("Insurance Partner(s)") where We act as the Master Policy Holder.
- **Information that We Collect:** We collect the following information from You with Your explicit consent per instructions from Lending Partners / Insurance Partners for processing Your loan application:
    1. Name,
    2. Mobile number,
    3. Gender,
    4. PAN number,
    5. Personal email id,
    6. Work email id,
    7. Pin code,
    8. Employer name,
    9. Mother's name,
    10. Current residential address,
    11. Office address,
    12. Bank account number,
    13. Bank statements,
    14. Aadhar card,
    15. Driver license,
    16. Any other KYC documents issued by Government,

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Tue, Mar 5, 2024 15:36:11 IST
Delhi

17. SMS Data: We collect certain information from your SMS from time to time. Please note that such data is limited to transaction data contained in the SMS, We do not collect, read or store bank OTPs, personal SMSs, account details etc. SMS data may be collected even when the Platform is not in use to ensure continuity of services provided by CreditVidya. An SDK under the brand name 'CreditVidya' may access this SMS data from time to time and this SDK is owned and operated by Us,
18. Income details,
19. IP address and OS: We collect IP address and OS for fraud check purposes and onboarding, and
20. Any other information as required by Lending Partners or Insurance Partners.

We do not access mobile phone resources like file and media, contact list,call logs, telephony functions and others or collect any biometric data. However, we may take a one-time access of Your camera for uploading a selfie image, microphone, location or any other facility for the purpose of KYC, loan onboarding journey, and insurance onboarding journey.

We may receive information related to Your loan transactions from Our Lending Partners if We are providing ancillary services to the Lending Partner such as collection of outstanding dues with respect to loan product provided to You by Lending Partners or for processing of Your loan application. We may share such information with Our subcontractors / Insurance Partners who will be using this information to provide services as outsourced to Us by Our Lending Partner.

- **Sharing of information:** We share the aforesaid information with Lending Partners, Insurance Partners, technology service providers, and third parties for authentication through OTP, to contact You regarding any loan product You display interest in or for completing a loan application, KYC check, collection of KYC documents, bank authentication purpose, issuance of certification of insurance, insurance claims servicing, to perform employment checks, for NACH registrations, and loan repayment purposes.
- For details of Our Lending Partners, You may refer to website link of Our Lending Partners which we publish on Our Platform.
- You understand that if you avail insurance along with a loan from the Platform, our Insurance Partners may seek medical information from any doctor / hospital who / which at any time has attended to You, or from any past or present employer concerning anything which affects Your physical / mental health, and seeking information from any other insurer to whom an application for insurance on You has been made for the purpose of underwriting the insurance proposal and / or claim settlement. You also authorise such Insurance Partners to share information pertaining to You, including Your medical records, for the sole purpose of underwriting the insurance proposal and / or claim settlement and with any governmental and / or regulatory authority.
- Please note that any information collected for loan application processing / issuance of certificate of insurance shall be collected with Your explicit consent, detailing the purpose of collection.

B. Provision of Credit Report:

- We fetch Your credit report (**"Report"**) from credit bureaus such as CIBIL and CRIF as Your agent after obtaining Your explicit consent and authorisation.
- **Information that We Collect:** We collect Your name, gender, email ID, and PAN to establish Your identity for this purpose.
- **Sharing of Report:** This Report is provided to You and is not shared with any third party.

On provision of information as mentioned in this Clause, You provide Your express consent to Us to use the information for the purpose stated in this Clause in accordance with this Policy.

C. Customer support:

- You may write to us at wecare@prefr.com for any customer support in relation to the Services provided by Us.
- **Information that We Collect:** We collect the information that You provide when Your write to Us for support to improve Our Services.
- **Sharing of information:** We share Your information with third parties (including technology service providers), Lending Partners, and Insurance Partners to provide effective customer support Services

By writing to us, You provide Your express consent to Us to use the information listed in this Clause for purposes mentioned in this Clause.

D. Cookies:

- Cookies are small data files that are stored on your device. Prefr and third-party service providers/partners may use cookies or similar technologies to analyze trends, understand User's behaviour, administer the Platform, track Users' movements around the Platform, and to gather demographic information for providing the User with a tailored and user-friendly services and measure promotional effectiveness. In the event Prefr intends to collect cookies, We will take your consent for the same. You may utilise the disable cookies option in the browser if You do not wish to share cookies at any point of time. However, the Services we provide to You may get affected if You do not provide consent for Us to collect cookies.

2. Your rights

With respect to the information collected by Us to provide Services, You have the following rights available to You:

- **Right to deny:**

  You may deny consent to provide any information required by Us, restrain Us from sharing information with Lending Partners, Insurance Partners, technology service providers, or third parties (as the case maybe), refuse storage of information or not provide Us the right to contact You.

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- **Right to withdraw consent with respect to use of information and right to be forgotten:**

  You have the right to withdraw consent previously provided to Us with respect to Our usage of Your information and You have the right to require the Platform to delete/ forget the data relating to You. Right to withdraw consent includes consent provided to Us previously for specific use of information, storing of information, sharing Your information with third parties / Lending Partners / technology service providers / Insurance Partners and consent to contact You.

  Basis Your request, We shall purge the information provided by You if there is no legal requirement to retain such information.

  However, we reserve the right to retain information to the extent required for below mentioned purposes:

  1. Comply with applicable laws;
  2. Enforce Our legal rights; or
  3. To provide any information required by regulatory authorities investing any fraud or illegal activities.

- However, Lending Partner may contact You regarding the loan application and payment of dues and shall continue processing Your information, if Your application for provision of loan was sent to Lending Partner or if You have availed any loan from Our Lending Partner till all dues of loan are paid. The Lending Partner may store Your information for as long as required to be stored per applicable laws. The Lending Partner may also require Us to retain information in circumstances when the Lending Partner has outsourced any services in relation to loan product such as collection of dues to Us and in such cases, We will be required to retain Your information.
- Similarly, the Insurance Partner may contact You regarding any insurance you have availed in relation to your loan, and for any servicing / claims settlement or other similar activities.
- **Right to rectify:**

  We disclaim all liability and responsibility for the authenticity of the information provided by You to Us. However, You have the right to review and correct, update and/or amend Your information provided to Us previously for it to be accurate, complete and up to date.

  However, kindly note that in a situation where You deny consent, withdraw consent, avail the right to be forgotten, or provide inaccurate information, You may not be able to avail the entire scope of our Services, and in such instance, we reserve the right to not provide You access to our Services or any part thereof.

3. How we protect and store Your information

Our security systems and process are compliant with applicable laws. We store and process Your information only in India. Our data centre and systems maintain backup and We have disaster recovery systems in place. Information shared with Us is hosted on virtual private cloud provided by a third party service provider. The virtual private cloud provides a secure and scalable technology platform to ensure We can provide You Services securely and reliably.

We are an ISO 27001 certified organization and have information security management system framework in place that ensures up-to-date physical security, such as secure areas in offices; electronic safeguards, such as passwords, firewalls, and encryption; and secure development procedures. Access control systems are in place. Our safety and security processes are audited by a third party cyber security audit agency from time to time.

In the scenarios where personal information collection is mandatory, for instance any information required to pull bureau report or for loan application, we encrypt the data with the latest security algorithms before transmitting the data. All such data is encrypted at rest. Information You, our technology service providers, and Our Lending Partners provide and receive during the Services is transmitted through a secure sockets layer (SSL) transmission. We encrypt and store personal information wherever it is possible. No data is shared with any third party unless until it is a core feature to serve the end-user, in all such scenarios the user consent is taken.

We restrict access to Your personal information only to those of our / our affiliates' employees who are required to know such information in order to provide Our Services to You. We train Our employees on all Our security procedures, and We conduct audits to check compliance.

No security measures can provide absolute protection of data, but We strive to protect Your information. If You are a security enthusiast and have found a possible security vulnerability on our products, we encourage You to report the issue to Us responsibly. You can reach out to Us at security@prefr.com.

If you choose to use Our social network pages (Facebook Fan page, Twitter, Linkedin, Google Play Store, Apple ITunes store etc), any information You submit can be read, collected, or used by other users of these sites. We are not responsible for the subsequent use of information, which You have submitted to the foregoing sites, by other users.

We retain Your minimal information for as long as it is necessary for providing You the Services available on the Platform or for carrying out Our operations unless We receive Your request for deletion of information. This however excludes, any information required to be retained due to relevance of information to any pending litigation or information that is otherwise required to be retained under any other law for the time being in force or information required to be retained due to instructions from our Lending Partners / Insurance Partners. On receipt of Your request for deletion of information, We will delete Your information in accordance with Clause 3(b).

4. Data Retention and Deletion

We shall not store any personal information of the Users except for some basic minimal data that may be required to carry out operations. The information We collect from You shall be retained for a period of time consistent with the purpose of collection of such information. We keep Your data for no longer than a reasonable period of time needed for us to pursue Our legitimate business interests, conduct audits and comply with Our legal obligations.

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5. Confidentiality

We may share Your data with third Parties for providing and improving Our Services, enforcing Prefr Terms of Use, and may use or assign Your information in the course of corporate divestitures, mergers, or to protect the rights, property, or safety of Us, Our Users, or others. Our third-party partners are under an obligation under the contract executed with Us to maintain confidentiality of Your information and not transfer such information without Our prior consent. Our contracts with these third parties outline the appropriate use and handling of Your Information and prohibit them from using any of Your information for purposes unrelated to the service they are providing. We also take reasonable measures and strive that any third party to whom information is transferred maintains the security standards per applicable laws. However, We are not responsible for any breach of security or for any actions of any third parties that receive Your personal information.

6. Obligation of the User

You hereby agree that You shall not host, display, upload, modify, publish, transmit, store, update or share any information that:

1. belongs to another person and to which the user does not have any right;
2. is in violates any law for the time being in force;
3. deceives or misleads the addressee about the origin of the message or knowingly and intentionally communicates any information which is patently false or misleading in nature but may reasonably be perceived as a fact;
4. impersonates another person; and
5. is patently false and untrue, and is written or published in any form, with the intent to mislead or harass a person, entity or agency for financial gain or to cause any injury to any person.

7. Grievance Redressal

If You have any grievance regarding the use of Your information which We collect or this Privacy Policy, You may write to Our Grievance Redressal Officer (**"GRO"**):

Name: Mr. Moksh Jain
Address: 2nd Floor, Block 2, My Home Hub, Hitech City Rd, Hyderabad, Telangana 500081
E-mail: nodal.officer@prefr.com

If You require any further information or clarification, You may also contact Us at wecare@prefr.com.

8. Severability and Exclusion

We have taken every effort to ensure that this Policy adheres with the applicable laws. The invalidity or unenforceability of any part of this Policy shall not prejudice or affect the validity or enforceability of the remainder of this Policy. This Policy does not apply to any information other than the information collected by Prefr through the Platform. This Policy shall be inapplicable to any unsolicited information You provide Us through this Platform or through any other means. This includes, but is not limited to, information posted in any public areas of the Platform. All unsolicited information shall be deemed to be non-confidential and Prefr is free to use and/ or disclose such unsolicited information without any limitations.

9. Governing Law and Dispute Resolution

This Policy shall be governed by and construed in accordance with the laws of the Republic of India. The courts at Mumbai, India shall have exclusive jurisdiction in relation to any disputes arising out of or in connection with this Policy.

10. No Waiver

The rights and remedies available under this Policy may be exercised as often as necessary and are cumulative and not exclusive of rights or remedies provided by law. It may be waived only in writing. Delay in exercising or non-exercise of any such right or remedy does not constitute a waiver of that right or remedy, or any other right or remedy.

11. Applicability of local laws

Prefr is a company based in India. By browsing/using the Platform, You hereby acknowledge that Prefr is not responsible or liable in any manner to comply with any local laws of Your territory except India.

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Digitally signed by [60745719_2409:4060:281:e409::79d:30a4_KUNAL DAS_05-03-2024 07:38:30]

BORROWER'S DECLARATION UNDER ESG FRAMEWORK

To,
Hero FinCorp Limited 34,
Community Center, Basant
Lok,Vasant Vihar, New
Delhi-110057

Date: 05/03/2024

Name of the Borrower: KUNAL DAS

Purpose for which loan is taken: Other emergency

Dear Sir,

KUNAL DAS has applied / received a loan of INR 250,000 from **Hero FinCorp Limited** (hereinafter referred to as "Lender") on 05/03/2024

I/We declare that utilization of the loan received from the lender, for the said purpose, Other emergency will be in compliance with the applicable State and National level Environmental, Social and Governance (ESG) Regulations.

I/ we will also ensure compliance with any amendments in the existing ESG regulations during the lending period.

Name of the Borrower: KUNAL DAS

Signature: 60745719_2409:4060:281:e409::79d:30a4_KUNAL DAS_05-03-2024 07:38:30

Name of the authorized Signatory:

ACKNOWLEDGEMENT

I/We, KUNAL DAS S/o / D/o / W/o R/o have received the copy of all the Loan Documents including Sanction Letter Personal Loan Agreement dated 05/03/2024 along with its Schedules attached there to. I/We also hereby confirm that the contents of the copy of Loan Documents have been explained to me in the language understandable by me/us. I/We have understood the meaning of all the provisions /contents of the Loan Documents and have voluntarily executed the said Loan Documents upon understanding the content therein.

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Signature of Borrower

_____
Signature of Co-Borrower

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